Defendant then challenges seven specific billing entries arguing that, individually, the entries are not concerning but when taken as a whole they indicate Plaintiffs' counsel's attempt to inflate attorney fees through a variety of methods. Defendant challenges the following entries:

- File Review in June 2024: Counsel billed 1.7 hours, 1.1 hours, and 1.4 hours for file review and similar tasks on June 10, 16, and 20. Defendant argues these hours should be reduced since counsel completed nearly identical tasks on each date.
- June 30, 2024: Counsel billed 2.3 hours for researching the NHTSA database. Defendant argues this is facially excessive.
- Drafting Discovery: Defendant challenges the 1.2 hours billed to draft standard discovery arguing Plaintiff's counsel relied on templates and overbilled the time spent.
- Notice of Deposition: Defendant challenges 1.5 hours billed to prepare multiple notices of deposition.
- Analysis of Objections: Defendant challenges Plaintiff's counsel billing 0.3 hours to review discovery objections every time they were served.
- Deposition Preparation: Defendant challenges the 2.9 hours billed to prepare Plaintiffs for deposition when the deposition never occurred. However, the deposition was noticed so it is not unreasonable for counsel to prepare for the deposition.
- Motions in Limine: Defendant challenges spending 4.2 hours on preparing motions in limine that did not serve any legitimate purpose.

The significant reduction in counsel's hourly rates has substantially reduced the lodestar fee amount. It is also not necessary to nitpick each of Plaintiff's counsel's billing entries. Additionally, even Defendant notes "[i]ndividually, the entries above do not raise substantial concern." (Supp. Opp. 5:19.) Defendant is correct as the above entries all appear to be facially appropriate. Given the court's adjustment of the overly inflated hourly rates, it is also not necessary to reduce the hours billed on these individual entries, as well.

Defendant did not challenge the claimed costs and expenses of $2,770. Therefore, it is appropriate to award this amount, as well.
The Court awards attorney fees in the amount of $37,015 in fees. The Court also award costs and expenses totaling $2,770. Plaintiff shall prepare a proposed order.

2.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2506695	SANCHEZ vs SANCHEZ	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court will continue the hearing to allow Defendant an opportunity to satisfy her statutory obligation to meet and confer in person or by telephone in accordance with C.C.P. §§ 430.41(a). The Defendant is ordered to (10 days before the continued hearing date) do one of the following: (1) vacate the hearing on the demurrer and file an answer to the FAC; (2) file with the court a declaration and stipulation indicating that the parties have agreed that Plaintiffs will file an amended complaint before the date set forth above; or (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer that the parties were unable to resolve.

Factual / Procedural Context

This action involves a family dispute over property. On December 3, 2025, Plaintiffs Evelio Chavez Sanchez ("Evelio")[1] and Alma Sanchez ("Alma") (together "Plaintiffs") filed a Complaint against Defendant Terry L. Sanchez ("Defendant" or "Terry") for: (1) fraud; (2) quiet title; and (3) declaratory relief. Terry filed a demurrer, and in response, on March 16, 2026, Plaintiffs filed a First Amended Complaint ("FAC") against Terry asserting the same causes of action. In the FAC, Plaintiffs allege that on April 30, 2001, Evelio purchased and took title to the property located at 940-944 Beverly Road, Corona, California (the "Property"). (FAC at ¶ 6.) At the time of purchase, Evelio entered into a verbal agreement with his brother Francisco Sanchez ("Francisco") to be partners in the Property. (FAC at ¶ 7.) Evelio and Francisco both contributed funds to the down payment on the Property, and Evelio obtained a mortgage in his name only. (FAC at ¶¶ 7, 8.) Plaintiffs have resided in the Property since it was purchased, and the mortgage has remained in Evelio's name from 2001 to September 2025. (FAC at ¶¶ 7, 8.) At the time the Property was purchased, Francisco was married to Terry, who he separated from in 2009. (FAC at ¶ 9.) On February 1, 2019, Plaintiffs signed a quitclaim deed for the Property at Francisco's behest. (FAC at ¶ 10.) Francisco led Plaintiffs to believe the legal effect of the quitclaim deed was to add Francisco a co-owner to protect his interest during dissolution proceedings, and they relied on his representations in signing the deed. (FAC at ¶¶ 11.) He paid no financial consideration to Plaintiffs, and did not provide them with a copy of the quitclaim deed. (FAC at ¶ 10.) Francisco never recorded the quitclaim deed, thereby preventing Plaintiffs from discovering they had been defrauded into relinquishing their ownership rights in the Property. (FAC at ¶ 13.) Francisco listed the Property as community property in his petition for dissolution of his marriage to Terry. (FAC at ¶ 12.) Evelio was added as a necessary party to the dissolution proceedings in January 2021, because he still held title to the Property since the deed had not been recorded. (FAC at ¶ 14.) On November 7, 2021, Francisco passed away, and the petition for dissolution of marriage was never finalized. (FAC at ¶ 16.) On August 1, 2022, Terry recorded the quitclaim deed intending to deprive Plaintiffs of their interest in the Property, despite previously acknowledging Evelio's interest by allowing him to join in the dissolution proceeding. (FAC at ¶¶ 17-18.) On April 16, 2024, Terry filed a Spousal Property Petition to confirm her half interest in the Property, and to transfer Francisco's interest to her as the surviving spouse, and on May 20, 2024, the Court granted her petition, making her sole owner of the Property. (FAC at ¶ 19.) She was complicit in the scheme initiated by Francisco. (FAC at ¶ 25.) Plaintiffs' harm

[1] Because multiple people share a last name, they are referred to "by their first names to avoid any confusion. No disrespect is intended." (*Rouland v. Pacific Specialty Ins. Co.* (2013) 220 Cal. App. 4th 280, 283.)

occurred when the Property was transferred to Terry on May 20, 2024, and Plaintiffs only became aware of the fraudulent scheme in December 2024. (FAC at ¶¶ 22, 34-35.) On September 30, 2025, Terry served Plaintiffs with an eviction notice. (FAC at ¶ 20.)

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Terry demurs to the fraud cause of action on the grounds that: (1) it is barred by the statute of limitations and there are no facts alleged supporting delayed discovery; and (2) it is not sufficiently pled with specificity.

In opposition, Plaintiffs argue that the fraud claim is not barred by the statute of limitations, and it is sufficiently stated.

Analysis

I. Meet and Confer

Pursuant to C.C.P. § 430.41(a), before filing a demurrer, the moving party must meet and confer in good faith with the plaintiff via phone or in person. Here, Defendant's counsel states that he sent one letter to Plaintiff's counsel regarding the demurrer. (See, Decl. of Andrew Knew at ¶ 2, Ex. A.) There is no evidence that defense counsel called Plaintiffs' counsel to discuss the merits of the demurrer, or even followed up on the email sent. C.C.P. § 430.41(a) very clearly requires that parties meet and confer by telephone or in person, regardless of the prospects of an informal resolution, and based on the evidence presented, Defendant did not do this. Accordingly, the hearing on the demurrer should be continued, and Defendant should be ordered to meet and confer with Plaintiffs by telephone, video conference or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the FAC. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the FAC may be amended to cure any legal insufficiency. After meeting and conferring, Defendant shall, 10 days before the continued hearing date set forth above, do one of the following:

(1) vacate the hearing on the demurrer and file an answer to the FAC;
(2) file with the court a declaration and stipulation indicating that the parties have agreed that Plaintiffs will file an amended complaint before the date set forth above; or
(3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer that the parties were unable to resolve.

The court will not accept further briefing.